and unity among them and to build an integrated Indian nation. Despite this, India has been witnessing the communal riots, class conflicts, caste wars, linguistic clashes and ethnic disputes. Thus, the cherished goal of the founding fathers and the Constitution-makers to build an united and integrated Indian nation has not been fully realised.

CONSTITUTIONAL PROVISIONS

The Constitution deals with the citizenship from Articles 5 to 11 under Part II. However, it contains neither any permanent nor any elaborate provisions in this regard. It only identifies the persons who became citizens of India at its commencement (i.e., on January 26, 1950). It does not deal with the problem of acquisition or loss of citizenship subsequent to its commencement. It empowers the Parliament to enact a law to provide for such matters and any other matter relating to citizenship. Accordingly, the Parliament has enacted the Citizenship Act (1955), which has been amended from time to time.

According to the Constitution, the following four categories of persons became the citizens of India at its commencement i.e., on January 26, 1950:

1. A person who had his/her domicile in India and also fulfilled any one of the three conditions, viz., if he/she was born in India; or if either of his/her parents was born in India; or if he/she has been ordinarily resident in India for five years immediately before the commencement of the Constitution, became a citizen of India.

2. A person who migrated to India from Pakistan became an Indian citizen if he/she or either of their parents or any of their grandparents was born in undivided India and also fulfilled any one of the two conditions viz., in case he/she migrated to India before July 19, 1948[4], he/she had been ordinarily resident in India since the date of his/her migration; or in case he/she migrated to India on or after July 19, 1948, he/she had been registered as a citizen of India. But, a person could be so registered only if he/she had been resident in India for six months preceding the date of his/her application for registration.

3. A person who migrated to Pakistan from India after March 1, 1947, but later returned to India for resettlement could become an Indian citizen. For this, he/she had to be resident in India for six months preceding the date of his/her application for registration[5].

4. A person who, or any of whose parents or grandparents, was born in undivided India but who is ordinarily residing outside India shall become an Indian citizen if he/she has been registered as a citizen of India by the diplomatic or consular representative of India in the country of his/her residence, whether before or after the commencement of the Constitution. Thus, this provision covers the overseas Indians who may want to acquire Indian citizenship.

To sum up, these provisions deal with the citizenship of (a) persons domiciled in India; (b) persons migrated from Pakistan; (c) persons migrated to Pakistan but later returned; and (d) persons of Indian origin residing outside India.

The other constitutional provisions with respect to the citizenship are as follows:

1. No person shall be a citizen of India or be deemed to be a citizen of India, if he/she has voluntarily acquired the citizenship of any foreign state.